

Judgment Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
Judicial Department

W.P.No.6245 of 2017

Khushi Mohammad.

Versus

**District Collector, Lodhran,
etc.**

JUDGMENT

Date of hearing: **17.04.2018**

Petitioner by: Rana Muhammad Nazir Khan Saeed
and Malik Muhammad Usman Bhatti,
Advocates

Respondents by: Mr. Aziz-ur-Rehman Khan, Advocate/
A.A.G.

MUZAMIL AKHTAR SHABIR, J: The petitioner is aggrieved of the order dated 02.11.2016 passed by District Collector, Lodhran/respondent No.1, whereby the said respondent refused to receive 10th/final installment for the issuance/grant of conveyance deed of land subject matter of this petition in his favour.

2. Brief facts of the case are that state land (Lot No.3) measuring 24 Acres 4 Kanals situated in Chak No. 15/M, Tehsil Dunyapur was leased out to the petitioner under 10-years lease scheme by the order of the Collector dated 27.04.1968. Subsequently notification dated 03.09.1979 was issued, whereby proprietary rights were to be allotted to the occupants. The petitioner along with many others applied to the concerned authorities for

proprietary rights, wherein the petitioner was directed to make payment of price of land i.e. Rs. 24,200/- vide order dated 26.01.1982. Some other similar persons also filed petitions for transfer of proprietary rights for Lots allotted to them. The petitioner claims that other similarly placed persons have been granted proprietary rights, whereas the same relief has been refused to the petitioner, which is discriminatory in nature and the order is liable to be set-aside. The case of the petitioner was referred to respondent No.1 by this Court vide order dated 18.03.2015 passed in W.P.No. 4019/2015 of 2015. The said respondent vide order dated 02.11.2016 has dismissed the application filed by the petitioner, which order is under challenge through this constitutional petition.

3. It has been argued on behalf of the petitioner that similarly placed persons have been allowed relief and have been issued proprietary rights, whereas the petitioner has been denied the same relief and the order of respondent No.1 being discriminatory is liable to be set-aside. Besides this Court in various constitutional petitions have directed the respondents to receive last and final installment and grant proprietary rights to the petitioner therein and the petitioner is also entitled to the same relief.

4. On the other hand, learned A.A.G had defended the order passed by respondent No.1.

5. Heard. Record perused.

6. The petitioner was allotted stand land under temporary cultivation measuring 100 Kanals 15 Marlas situated in land of Chak No. 15/M, Tehsil Dunyapur, District Lodhran under 10-years lease scheme by

the order of the Collector dated 27.04.1968. Thereafter after promulgation of Notification No. 3215-79/3973-CII dated 03.09.1979, the petitioner was declared eligible to purchase the proprietary rights of the land allotted to him in the year 1981-82. After having been declared eligible, the petitioner started paying installments towards proprietary rights with the order of District Collector, Lodhran. Nine installments of the land were paid towards proprietary rights in compliance of order of the District Collector, Lodhran dated 03.06.2003 and five installments on 03.07.2003. Similarly placed allottees filed W.P.No. 5809/2002 to seek direction to respondent No.1 to receive the remaining installment. The above said writ petition was disposed of by this Court vide order dated 18.07.2002 by observing as under:-

“If the petitioners have been held to be eligible for the grant of proprietary rights, they may apply to the collector seeking direction for deposit of installments, who is obliged to dispose of the same in accordance with law. The respondent should also otherwise ensure that the petitioners do not hold state land if legally, they are not entitled for the same”.

The petitioner applied to respondent No.1 to receive the remaining installment of the sale price of the Lots allotted to them for which he was declared eligible to purchase the proprietary rights. The District Officer (Revenue) allowed the petitioner to deposit the remaining installments towards the sale price after ensuring that the petitioner was declared eligible in the year 1981-82 by the orders of the Collector, Dunyapur. The petitioner deposited 09 installments towards the sale price and only one last installment was outstanding for which the other allottees had approached respondent No.1 through written application to receive the same and execute the sale deeds in their favour, but the application was rejected. The said allottees

challenged the impugned order dated 19.04.2006 passed by respondent No.1 through W.P.No.3767/2006, which was allowed in the following way:-

“It is an undeniable fact that the land in question was not within the town limits of Town Committee, Dunyapur and was lying out of 03 miles radius from its outer limits it did not fall within the prohibited zone. Later inclusion of the land in question in the limits of town committee or in the prohibited zone in consequence of extension will not effect the eligibility of the petitioner for the grant of proprietary rights to them. The impugned order dated 19.04.2006 passed by District Officer (Revenue), Lodhran is declared illegal and offensive at law and the same is set-aside. The petitions are declared eligible for proprietary rights of the land in question. The petitions shall pay the last installment due within thirty days from today and the same when tendered shall be received by the respondents. The petition is accepted.”

The respondent No.1 did not take any action upon the application filed by the allottees. The allottees also filed contempt petition bearing Cr. Original No. 340-W/2014 before this Court in which vide order dated 02.06.2014, the respondent was summoned and the petition was disposed of with the following observations:-

“The respondents are directed to comply with the order dated 21.11.2012 passed in W.P.No. 3767/2006, however, the same shall be subject to any decision made by the Hon’ble Supreme Court of Pakistan in CPLA No. 134-L/2013.
The learned Lower Officer, upon instructions submits that the order dated 21.11.2012 passed by this Court in W.P.No. 3767/2013 shall be implemented within ten days.
In view of the station made by the Learned Lower Officer, this criminal original is disposed of for the time being.”

Some of the other allottees also filed W.P.No. 12587 of 2014 before this Court for payment of last installment regarding the land in the light of order dated 21.11.2012 passed in W.P.No. 3767/2006, which was disposed of vide order dated 16.09.2014 in the following manner:-

“3. In view of the above, respondent No.1 shall allow the petitioners to pay their respective last installment regarding the land, for which, they had applied for the conferring of the proprietary rights. Since respondents have acquiesced in the order dated 21.11.2012 passed in W.P.No. 3767/2006, it is incumbent upon them to bow their head to the

same, particularly when judgment of this court is binding upon them under Article 201 of the Constitution of Islamic Republic of Pakistan.”

The petitioner filed an applicant on the same subject addressed to respondent No.1, which remained pending with the said respondent. The petitioner filed W.P.No. 4019/2015 before this Court in which this Court issued a direction to respondent No.1 vide order dated 18.03.2015 in the manner as under:-

“Be that as it may, since the sole grievance of petitioner is regarding the failure on the part of the respondent No.1 to decide upon the application of the petitioner, it is directed that the respondent No.1, District Collector (Revenue), Lodhran shall decide upon the application of the petitioner within a period of twenty five days from the receipt of order of this Court after hearing the petitioner and through a speaking order, under intimation to the D.R (Judl) of this Court.”

Subsequently, respondent No.1 vide impugned order dated 02.11.2016 has held as under:-

“Thus, in the attending circumstances, request of the petitioner for permission to deposit of the last installment and issuance of conveyance deed in light of above referred orders is not maintainable. Hence, request of the petitioner regarding payment of last installment and issuance of conveyance deed being in contrast with Board of Revenue, Punjab directions is hereby rejected.”

7. From the foregoing discussion, it is observed that in the impugned order the petitioner’s claim of proprietary rights was declined as the petitioner Khushi Muhammad was not a proper party in W.P.No.3767/2006 or Civil Petition No. 134-L/2013, which were decided vide orders dated 21.11.2012 & 30.06.2016, respectively and that both the orders were passed under the doctrine of *Personem* and not *in Rem*. It is observed that in proceeding of the earlier constitutional petitions, the petitioner and others were issued challan by the District Officer (Revenue), Lodhran dated 03.07.2003, wherein all the afore-referred persons including the petitioner were directed to make payment of nine installments, which

they deposited and petitioner made payment for an amount of Rs. 46402/-. Thereafter, various persons filed different writ petitions but the petitioner did not associate with the same and he had pursued the remedy separately. The petitions filed by the other allottees have earlier been allowed. Petitioner is a similarly placed person and had been independently pursuing his remedy.

8. The government authorities/officials are required to have a uniform policy and implement the same for and against all the persons equally which has not been done in the present case and refusing the petitioner with the same relief is discriminatory. Resultantly, the impugned order dated 02.11.2016 is not sustainable in the eye of law as the same suffers from discrimination and is hereby set-aside. Consequently, on the principle of consistency, this Court directs that the petitioner being one of the equally placed persons is entitled to the same relief of transfer of proprietary rights.

9. For what has been discussed above, this petition is **allowed**. The petitioner is declared eligible for proprietary rights of the land in question subject to payment of last installment. The respondents shall issue challan form to the petitioner for the payment of the said installment and the petitioner shall pay the last installment due within thirty days from issuance of the challan form by the respondents and the same when tendered shall be received by the respondents, who shall further process the case of the petitioner for proprietary rights.

(Muzamil Akhtar Shabir)
Judge